

The Appeal

By the time the appeal learned how to type, the sentence was already bodily.

A case file likes to pretend its chronology is the only chronology. Verdict, sentence, notice, record, briefing, hearing. The body keeps another calendar. Humiliation. Custody. Waiting. Paper. The legal sequence kept its own order, but by February 13, 2023 Daniel was not experiencing his future as doctrine. He was experiencing it as email.

Appeals.

Then Fwd: Appeals.

Then RE: Appeals.

The higher chamber first reintroduced itself not as rescue, but as subject line. Bureaucracy can take a human catastrophe and make it dress for office.

At 3:35 p.m. on February 13, Daniel wrote to McClintock Law Firm because Susan Chadderdon had referred him there with regard to appealing his felony stalking case. The nouns were already wearing handcuffs. A felony stalking case. As if language itself had agreed to stand still while the state pinned labels on it. He wrote that he understood the process did not begin until after sentencing, but wanted to better understand how they proceed. He was asking for a way back into a future that had already been mislabeled.

The answer came eleven minutes later, which is either efficiency or the speed that reminds you calamity is never as singular to the professionals as it is to you. Geoffrey Wolter, assistant to Elizabeth McClintock, asked for a case number and any other pertinent information. He would be happy to help arrange a time to speak with Ms. McClintock.

Happy to help. Arrange a time. Pertinent information.

Before the law will reconsider your life, it wants intake first. A case number. A consultation. A box with a reference number on the side.

Daniel wrote back with 2022CR002416, and then because no one had yet taught him the difference between a story and an issue, he gave them the living version. He described the fiancée who had stopped talking to him. The messages. The flowers. The love poems read in monotone and mocked. The broadness of the law. The deputy already infected by prior rumor. Old tenderness, grievance, community appetite, and state power kneaded into felony.

It was too much, and it was exactly what he had.

The narrowing had begun. In the human world, appeal sounds roomy, like a wiser room farther uphill where fuller language may still be admitted if you knock hard enough. In the legal world, appeal wants a transcript, a sentencing date, a consultation, and error slim enough to pass through a procedural keyhole. It asks not whether a life was flattened, but whether flattening followed choreography.

At 4:45 p.m., Geoffrey replied again: received, thank you, I will get this information to Ms. McClintock and be in touch tomorrow, have a wonderful day.

Have a wonderful day.

Enough of that language and catastrophe begins to sound like an appointment.

By February 16 there was an appointment: Thursday, February 23, 2023 at 1:00 p.m., 407 South Tejon Street, Suite K, two blocks south of the El Paso County Combined Courts. That was how the paper road began. Not with revelation, but with directions. An address, if you have recently been thrown out of one future and are trying to find another, can at least tell your body where to go.

He did not yet know that higher and deeper were not the same direction.

The higher road was there: emails, offices, transcripts, estimates, calendars, continuances, scraps of trial language fit for review. Necessary. Narrow. Fluorescent. Carpeted. Real.

The deeper road had not yet formally announced itself, but it was already breathing underneath the other one. It was there in the fact that the record had finished speaking and life had not. It was there in Camille, though not yet in any way the law could route, invoice, or recognize.

Her question had not yet become babies, workdays, groceries, validation, holiday bread, candle wax, goose calls, white dresses before dawn, or the old exhausted miracle of a household refusing to let dread set the terms of breakfast. But it was in the room waiting for time to grow a body around it.

What if a future could still be made?

That question had no field in the consultation request. Geoffrey could not route it. Elizabeth could not bill it. The appellate court would never recognize it as a justiciable issue. Still, it sat there beside the case number, alive in paperwork that did not know it was touching a future.

Before the appeal became architecture, it practiced on a phone.

The state had already taken the obvious things. Reputation. Employability. Time. A clean relation to the future. Then it went on keeping the smaller object that had once made ordinary life possible: the phone itself, a black rectangle full of passwords, contacts, maps, jokes, messages, habits, directions home.

On September 15, 2023, after the order staying execution of sentence regarding probation, Daniel wrote back with the kind of question a file never quite knows what to do with.

Am I still on probation?

And then, more concretely: what does this mean? Do we still have hearing Oct 12?

Camille was copied on the thread. The law had already stopped being something that happened to one man in a sealed chamber. It had begun leaking into the household grammar of dates, rides, workdays, and what exactly the next interruption was going to cost.

Three days later Daniel asked the practical question.

Do you think I can get my phone back now?

Geoffrey wrote that he had emailed Grant Libby to ask when and where Daniel should provide his passcode so the phone could be factory reset and returned. A week later there was still no update. Libby had contacted the court to inquire about the motions hearing set for October 12 in light of the judge already ruling on the stay regarding probation; at that point they were just waiting for a response from the judge. The district attorney, Geoffrey wrote, was not willing to comply until he had an answer from the court regarding the hearing.

The object itself was almost comically small compared with the case. That was part of the obscenity. A whole system had arranged itself around withholding one device because it could not bear to concede that enough had already been taken. Libby was, as Geoffrey put it, dragging it out as much as he could. He was trying to preserve the right, if there were ever a new trial, to keep reaching back into the phone and recover additional evidentiary material. The state does not only punish. It keeps its options warm.

So October acquired one more interruption. The hearing on the twelfth might be in person. It might be virtual. It might be vacated. Daniel got a reminder and asked if it was still a thing. He asked whether there would be a dial-in. He asked what, exactly, the hearing was for. These are not grand appellate questions. They are the questions of someone trying to discover whether next Thursday belongs to the family or to the courthouse.

On October 6 it looked like the hearing would be vacated. On October 9 it was vacated. Libby still had not responded about the phone. On October 11 Geoffrey explained the larger indignity in plain office prose: because no specific time frame had been given for compliance, Libby considered himself still in compliance. He was going to continue fighting to keep the phone as evidence on the assumption that Daniel might come back to district court for a new trial after a successful appeal. Pursuing the issue further, Geoffrey added, was taking up too much of Ms. McClintock's schedule and was beyond the scope of the fee agreement now that the direct appeal briefing had to take precedence.

The law had done it again: turned inconvenience into procedure, delay into a position, somebody's property into paper.

The phone finally came home the plain way. On January 2, 2024, after Happy New Year had already been exchanged, Daniel wrote to say that he and Camille had called the evidence folks directly and gone to get it the week before. It wasn't even wiped. Whatever. Geoffrey wrote back that this was awesome and asked, with professional curiosity sharpened by months of resistance, who they

had dealt with to get it released. He assumed it wasn't Grant Libby, since he'd been so difficult up to that point.

The state had held it, argued over it, scheduled hearings around it, preserved future rights in it, and in the end it came back because they called the office themselves and went down there.

Five days later they were at Magic Kingdom before dawn.

Not metaphorically. Literally there: buses, medals, rain, castle, monorail, tired feet, phone tracking, reunion instructions, a day so logistically foolish it only makes sense as love.

At 4:46 in the morning Camille texted, **I love you!!!** Then: **I am ok, I am on a bus to get checked in and get my medal and then I will head to magic kingdom.** Daniel answered a little later, **I love you!!!** and then, with the candor that usually tells the truth faster than style can, **This is so much less fun without you!** He followed it with the better sentence: **You are my favorite thing.** Then: **I love doing everything with you!**

The thread keeps going. Rain. A hat. Buses. Wrong lines. The line to Epcot too massive. Camille warming up at the Polynesian and getting a snack. Daniel somewhere in the swamps. Camille tracking him. Camille finding a place just past Mickey and Minnie near the entrance to Magic Kingdom. Camille saying she was super proud of him. Then: **You looked pretty fantastic strutting down Main Street toward the castle!**

Not handsome. Not brave. Not even simply beloved. Fantastic. Strutting. Main Street. Toward the castle. She knew where to find him.

The thread keeps all the creaturely inconvenience in view. He got rained on. She got routed through the wrong security line and randomly selected for search. He did not know where he was. She was trying to reach him through reunion signage and buses and crowds. He made it sixteen miles and through Animal Kingdom. She kept saying he was doing great. He kept moving toward her. By the time he texted, **I think I'm done**, she was already heading toward the reunion place and telling him he had done really great.

Five days earlier the state had still been treating his phone as future evidence. Here the same instrument kept letting two people find one another through rain, crowds, transit, exhaustion, and spectacle. It had come back to the only use that mattered.

Then the appeal went back to paper.

Invoices. Transcript orders. Opening brief. Answer brief. Reply. Dates that looked decisive until they met another date and were told to sit back down. The law is never more sincerely itself than when it calls postponement process. The body refused to live in docket format. Daniel and Camille handfasted on Lughnasadh. Finn was conceived. Finn was born at the Beltane threshold. Aleia followed by the same old August door through which vow and fertility had

learned to recognize one another. The family kept making facts the record could not author and could not successfully forbid. Paper kept filing itself. Life kept getting born anyway.

Before the handfasting became calendar fact, it had become place.

There was a cave.

Not a literary cave. A real one, reached by feet, weather, timing, willingness, and their habit of seeking thresholds in a life already cluttered with ordinary American ugliness. They had gone there once around the 2023 Equinox, when autumn was beginning to remember its own theater and the year had not yet decided whether it meant to heal them or merely change costumes. Then they returned on August 1, 2024, on Lughnasadh, to handfast.

The photo archive insists on dates. A dense cluster in the Equinox corridor. Another concentration on August 1. Clothing, light, bodies, weather, all lined up like quiet witnesses. The exact cave may still be coy in metadata, but the recurrence is not. They went back on purpose.

The older court is not impressed by romance in the abstract. Plenty of people feel profound next to a rock. Plenty of people make vows that evaporate by the time the laundry is dry. What catches its attention is return. Threshold revisited. A place approached once in wondering and once in consent. They did not stumble into August. They chose it. They went back and said yes there.

Camille did not sign for the court's revised edition of Daniel. She chose the man who was still there.

The higher court wants issue, error, standard, remedy. The cave wanted bodies willing to become more responsible than they had been before. The handfasting was not acquittal by enchantment. It was the opposite: a voluntary increase in liability. More witness. More future. More cost. More chances to fail one another, and therefore more obligation not to.

By then they knew enough to make the vow serious. She had heard love translated into evidence. He had been turned into a public cautionary tale by people with folders and microphones. Neither of them was marrying innocence. They were marrying after review. The vow came after the record and refused to end there.

In this house the marriage has always been half rite and half joke, half fervor and half practical weather, so sacredness did not cancel the creaturely details. There would still be driving and packing and whoever remembered the thing that had almost been forgotten. The body's timing. The season's mood. Whatever had to be carried in by hand. It had to coexist with snacks, fatigue, and human temperature.

When Finn was conceived on August 1, 2023, and Aleia again by that same August door in 2024, the repetitions did not function as proof. They functioned as return. Vow and fertility learning one another's address. The legal case kept

asking what had been preserved in the record. The family, more insolently, kept preserving August.

For one afternoon in October of 2024, the paper briefly recovered a mouth.

On August 20 the office wrote to say oral arguments in 23CA924 had been set for October 22 at 1:30 p.m. Daniel asked whether this was something he could or should attend. He was told yes, he absolutely could, but no, he was under no obligation. Later, because he would be out of town, he asked whether there was a way to dial in, or get a transcript, or something. By then he knew better than to ask for revelation. He would have taken access.

The court streamed the argument online. Bureaucracy will flatten your history, bill you for contesting it, and sometimes send you a link.

When the argument ended, Daniel wrote the two questions that mattered. How do you think it went? What happens next?

The answer came back quickly and plain enough. Geoffrey would have to speak with Ms. McClintock regarding her feelings about how the oral arguments went, but he could say this much: she intended to file the 35(c)(1) on Daniel's behalf in the upcoming days, prior to any opinion being issued in the direct appeal.

The higher road bent downward again, sideways, through procedure. On October 29 the office sent the next paper: Petition for Postconviction Relief Pursuant to Crim. P. 35(c)(1), filed that day, along with a Motion for Limited Remand designed to give jurisdiction back to the trial court to rule on it.

Limited remand sounds like something you might do to a horse. Here it meant the Court of Appeals being asked, politely, to hand the case back downstairs so the lower chamber could reconsider what had already been done in its name. Daniel asked whether this was something the judge ruled on directly, or whether there would be back and forth with prosecutors. A few weeks later, when a new order arrived, he asked a different, equally human question: is it a different judge?

Yes, they had transferred the case to Judge Dennis McGuire in Division 9 for the appellate and postconviction proceedings.

The room changed again.

By January 2025 the People had asked for an extension to file their response until January 31, and the extension was granted. So, Geoffrey wrote, we're just waiting for them to file at this point. On February 10 the People's Response to and Motion to Deny Defendant's Motion for Post-Conviction Relief arrived right at the deadline, having apparently stayed up late for the privilege. On March 14 McClintock's reply was due and being finished up that same day. A filing-fee invoice drifted through the corridor.

The family calendar had better stakes. Finn was already in the world. Aleia arrived on May the Fourth of 2025 at home, with the midwife late enough that

Daniel delivered her himself. When Geoffrey heard, he responded first like a citizen and only second like an officer of procedure: now, about delivering that baby... you did what?!? That absolutely blows my mind. One of the rare moments in the archive when the legal thread sounded human again.

Then **Crawford** arrived. The case did not know how to leave beauty alone.

On June 20, 2025, the office sent the latest order in 22CR2416: the court had ordered Ms. McClintock to file a supplemental brief addressing the Colorado Supreme Court's ruling in **People v. Crawford** within twenty-eight days. Daniel read the case and answered in the old wounded register that no doctrine had ever successfully cured. Peeping in a window four years later was not the same thing as texting your fiancée within a month of being abandoned without explanation. Nobody wanted that to be a felony. He said he trusted them to handle it. On May 27, while discussing the still-unscheduled hearing, Geoffrey had also mentioned that part of Judge McGuire's docket might be transferred to Division 25 after July 1. Even the judge was subject to continuance.

By August 28 the petitioner's brief re **Crawford** had been filed. By September 30 the People's supplemental brief had arrived, along with a reminder that the August 26 e-filing invoice still wanted to be paid.

A baby can be born at home in May, a supplemental doctrine can descend in June, a brief can be filed in August, and the state can answer in September while the household asks where the money went, whether anyone slept, whether the baby fed well, whether the ritual still holds, whether love can stay articulate under all this paper.

By the late family years, the case had become one more thing the family kept having to carry.

It no longer required a courtroom in order to be present. It could crouch in the bank balance. It could hang in the jobs Daniel could not get. It could ride around in the body before anything had happened. It could turn a week skittish before the week had done anything to deserve it. It kept finding ways to survive inside ordinary life, nibbling at plans, employability, sex, confidence, and whatever remained in the household that had once presumed the future would be a room rather than a verdict with mold on it.

By midmorning the kitchen looked like the household.

Sticky, interrupted, overburdened, and expected to function beautifully.

There was yogurt on the bib, yogurt on the tray, yogurt on the leg of the chair, and a pale thumbprint of it on the front of Camille's shirt that she had stopped noticing because motherhood eventually teaches a woman the difference between stain and emergency. A bottle stood by the sink. Blueberries had burst and dried where they landed. The coffee was cold. One child was finally asleep. The other was making the sort of pre-cry noises that tell you peace is only changing costumes.

She was trying to answer a message with one hand and keep the rest of the day together with the other when Daniel came in holding his phone in a way that made her tired before he spoke.

“What?”

He glanced down at the screen again. “It got moved.”

Of course it got moved.

The case had learned how to stay in the room. It was in the month’s arithmetic, in the jobs Daniel could not get, in the way a plan could not stay a plan for more than ten minutes without some old shadow from the record putting its elbow on the table.

“When?”

He told her.

She picked up the spoon, set it down, wiped a clean place on the counter, then wiped the same place again.

“I hate this,” she said.

He began to explain.

“No, I know what happened,” she said. “I know what a continuance is. I know what scheduling is. I know what all of it is. I mean I hate this. I hate what it does.”

The house went quiet for a breath. Sunlight fell over the counter and caught the milk ring beside the sink, making it look briefly ceremonial.

“It makes me feel insecure,” she said, more quietly now. “All the time. Financially, yes. But not just that. Like we are always one stupid piece of paper away from the whole week belonging to somebody else.”

She was afraid of instability. Afraid of building a life with both hands while some old bureaucratic ghost kept reaching through the wall to change the week. Afraid of being the one who remembered the groceries, the nap windows, the bills, the birthdays, the little ceremonies, the yogurt, the milk, and then feeling she was the one failing.

Daniel put the phone down.

“I love you,” he said.

She looked at him and hated that tears were already there.

“You are enough,” he said.

For a second she could feel how near everything lived to breaking: the budget, the sleep, the body, the little erotic life that had once had room for adventure and now had to make do with exhausted affection and strategic hope. Then she stepped toward him and put her forehead against his chest while the dishwasher

hung open behind them and a child cried out from the bedroom with the raw authority children have.

The date had moved. The case was the case. But the room no longer felt leased to the state. It belonged again to a family.

Martinmas arrived with its cape and goose and comic, sacred turnips. Santa Lucia arrived by way of an American Girl doll's fabricated childhood and stayed because Camille could make symbolism livable. The family did not keep observance because life was easy enough for quaintness. They kept it because difficulty, left alone, coarsens.

By Martinmas, the family knew a feast was labor with a melody on it.

One child needed carrying. One child needed watching. Somebody's sock had defected. Somebody's mood had. The kitchen looked like autumn had died there on purpose. Flour on the counter. A bowl in the sink. Sticky spoons. A sweet hot smell of yeast and cinnamon trying its best to pass for prosperity. The turnip flesh lay in pale damp curls on the cutting board.

Camille was making it.

"Not that one," she said, pointing with her wrist because both hands were occupied. "The red bowl. And move the matches higher unless you want Finn to discover sainthood by combustion."

When it was time for the story, she tied on the cape and the room obeyed her.

"No goose call during the beggar part."

Finn lowered the instrument with solemn reluctance.

Then she told it plain. A cold man. A cloak. A cut through the middle. Half kept. Half given away. Her voice did not make a museum out of the saint. It kept him useful.

Finn blew the goose call anyway, but softly, as if even mischief understood liturgy.

Camille stopped, looked at him, and laughed before finishing the sentence. The feast stayed in the human register, where holiness still had to share air with children, wax drippings, carbohydrate, and poor impulse control.

Then she kept going. Here is what we do when darkness comes early. We light something. We feed people. We do not wait for the world to become reasonable before practicing warmth.

Outside, the pines waited in their dark patience. Inside, the feast thickened. Bread. Wax. Turnip light. A cape slung over a chair. The yeasty sweetness of the Weckmann cooling on the counter. A porch goose dressed for destiny. A child deciphering a clue with the total seriousness children bring to games that adults are wise enough to sanctify.

The turnip lantern on the table had started to cave in at one cheek, the little face going soft from heat, but it still held a candle in its wet orange body and kept shining as if collapse and service had never been enemies.

No appellate court has doctrine for turnips. It cannot weigh a goose call against a felony. But the law was not the only thing in the room with a record. There was also the flour on her shirt, the wax cooling in little white tears, the goose call abandoned on the chair cushion, the bread men lined on the counter with their comic, saintly faces, and that turnip lantern refusing darkness with a perseverance homely enough to embarrass a cathedral.

Santa Lucia entered the marriage by fraud, which is why everybody trusted her.

Not criminal fraud. Childhood fraud. Doll fraud. Camille had once heard the story of the girl in white with candles on her head, adopted it from an American Girl backstory with the serene larceny children bring to beloved fiction, and later discovered that what she remembered as biography had in fact been an imaginative annexation. They called her mother. Her mother had no idea what she was talking about. Better that way.

By the third year, Santa Lucia was no longer a misunderstanding. It was breakfast.

The house was dark when Camille got up. Not poetically dark. Parent dark. The floor was cold. The coffee felt hypothetical. Somewhere in the next room there was a child capable of waking at any moment with the total moral force of a fire alarm that had learned attachment theory.

There she was.

White dress. Candles. The little mortal pageant of light.

When the children stumbled into the kitchen, blinking like insulted owls, Camille did not explain Sweden first. She handed over the sweetness.

“Careful of the wax,” she said. “And nobody touch the crown unless you’d like your eyebrows edited by the saints.”

Then she smiled and lifted the tray a little higher, candles trembling over the buns and coffee as if breakfast had decided to become liturgical before anyone could object.

A borrowed story, a mistaken memory, a doll’s backstory with the serial numbers filed off by love. Then repetition. Then dawn. Then children reaching for sweetness with sleep on their faces. By the third year nobody cared whether Santa Lucia had entered the household through Sweden or fiction. The older court, left to its own candlelit suspicions, might have said she had come through some much older door: a lost light-bringer with a saint’s borrowed name. Either way, she had entered through Camille, which held harder.

The younger court wanted sequence, issue, remedy, preservation. Left alone too long, the older court would begin stringing correspondences between feast day

and vow day, cave day and candle day, child day and judgment day, until a household started looking less like a family than a diagram with crumbs on it. Camille answered both by adjusting the crown, warning about wax, passing the buns, and continuing to be tired, exacting, funny, overburdened, radiant, and real.

The room asked to be seen.

In one corner the cape was slung over a chair. On the counter the bread men were cooling in their comic holiness, each one looking as if it might bless a child or start a union. There was wax in little white tears. There was a goose call on a cushion. There was the turnip lantern shining from its wet orange collapse. There was a white dress before dawn. There was milk to wipe up, money to worry about, and a schedule capable of mutiny. The case had not withdrawn its claims. It was there in the file-cabinet dimension where old paper goes to keep affecting young bodies.

But the room belonged to a family and not to the state.

And then the season kept moving, carrying the case with it.

By late September of 2025, the family had learned how to travel while outnumbered by tenderness.

There were two babies now, which meant that every excursion contained at least three invisible luggage compartments. One for clothes and wipes and bottles and whatever object had most recently become necessary to the emotional continuity of a very small citizen. One for parental hope, which is bulkier than people admit and rarely fits in the assigned space. And one for the legal afterlife, which rode along anyway.

They went to Maine in the last days of September and the first days of October, up through coastal New Hampshire and southern Maine with both children, the car full of baby architecture and the marriage full of the usual late-family weather: love, fatigue, gear, coastlight, snacks, irritation, beauty, calculations, and the maddening quantity of objects required to move two tiny sovereigns a few hundred miles without provoking constitutional crisis.

The photos prove at least this much. Camille in late-September light. Camille in early-October light. Camille with the children in a corridor of coast and weather broad enough to make the state's paperwork look briefly provincial. The archive preserves 148 visible Camille-tagged images between September 27 and October 5, 2025. A family was there.

The case came anyway.

It could tolerate scenery. It could survive a shoreline. It could look at water and remain administrative.

Daniel and Camille drove north with both babies because life wanted room, salt air, different windows, a fresh arrangement of fatigue. The case, meanwhile, kept

the right to knock later.

It knocked on November 12 at 8:30 in the morning in Division 25.

That was the theory, anyway.

Six days earlier, on November 6, 2025, McClintock Law Firm sent the order setting a hearing on the petition for postconviction relief pursuant to Rule 35(c). The reminder system added its own civic tenderness: final reminder, your court date is scheduled for case 2022CR002416 on 11/12/2025 at 08:30 AM in Division 25 at the El Paso County Combined Courts, missing a court date may lead to a warrant for your arrest, unless expressly authorized by a judicial officer your presence in the courtroom is required.

So Daniel went.

He showed up at Division 25 at 8:30 in the morning and found the courtroom under construction.

Not metaphorically under construction. Not spiritually. Lumber-and-disruption under construction. The judge was apparently not there. The room looked unavailable in every register. The court, however, had still found time to threaten a warrant in the reminder language if he failed to appear for the non-appearance.

American law can still demand obedience from an empty room.

From his phone that morning, Daniel wrote the only sentence available to a citizen who has complied with reality only to discover that reality has subcontracted the job: **I showed up at Division 25, 8:30a... The court room is under construction? Judge is not even in today?**

The body was required. The architecture was optional. The threat was firm. The meaning was deferred. What looked like an in-person hearing turned out to be a court date for scheduling the date that would matter later, assuming the later date could resist multiplication.

By January it was procedure.

On January 15, 2026, Daniel wrote again because he had a similar notice about court the next day and, as he put it, “as I recall, this is just a scheduling meeting?”

Should I plan to attend, dial in, or not worry about it?

Whatever the court was doing in its January chamber, babies had to be fed. Somebody needed sleep at the wrong hour. Money had to be worried about in the ordinary denominational units of groceries, gas, bills, and whether one more legal ripple would take a bite out of the month. Household life does not pause because a hearing has become a hearing to schedule a hearing. It acquires one more thing to carry.

The human court called it Rule 35(c), status, scope, setting. The household called it whatever had to be absorbed before breakfast, after breakfast, during

nap windows, between messages, while loading the car, while wiping the bottle, while pretending not to count. Relief was mostly a calendar proposition. April 6 waited ahead like another room they would have to drag their bodies into.

The court set a date to set a date. The household set a nap to survive the day. The court reviewed scope. The family reviewed supplies. Only one needed a diaper bag.

By then Camille's question had changed shape without changing substance. It no longer arrived only as the future in the abstract. It arrived as a harder, more practical enchantment. Could a family remain beautiful while repeatedly being summoned by institutions too disorganized to stage their own authority cleanly? Could warmth survive appointment language? Could light still be carried into the house by hand, saint's name or older name, when the official rooms kept failing to hold?

Then the state wanted an expert.

Not an angel. Not a witness from the deep wood. Not a grandmother with second sight and a cast-iron pan full of practical truth. An expert witness.

The evidentiary hearing now wanted old words with a new paid mouth.

The next morning, before the day had properly decided what kind of day it was, Geoffrey wrote again. They had reached out to attorney David Beller to see if he would be available as an expert witness for the upcoming evidentiary hearing. His standard rate was five hundred dollars an hour. Elizabeth anticipated needing around one hour of testimony. There would be preparation. He would need to read approximately four hundred pages of transcripts, specifically the direct and redirect examination of Brooke Neuberger and the People's closing arguments. There would have to be a meeting beforehand to discuss the planned testimony. Estimated total: somewhere between five and ten hours.

The law had convicted Daniel once. Now it wanted a specialist to explain it back to itself at professional rates.

An office email can say "of course" when it means this will cost money you do not have in a month already populated by children. Five hundred dollars an hour is groceries, gas, the electric bill. Another way the old case reaches into the kitchen and helps itself to the future.

On January 23 the news improved and worsened in the same breath. David Beller would be available. He was running a conflict check. His firm generally required a twenty-hour retainer to begin work, but the office did not believe he would require that much time, so they would ask for a ten-hour retainer instead. The number came down, but not into the range of relief.

Please let us know how you wish to proceed.

Proceed meant deciding whether to buy this reading of what was done to you. Whether to pay for ten hours, maybe fewer, maybe not, so a stranger could

study four hundred pages of old damage and explain them back to the court in its own language. Or keep the money and arrive with one less sanctioned voice on your side. Either way, it entered the house as cost.

By January 28 Geoffrey had left a voicemail and followed with an email. The office required approval to move forward with retaining David Beller as an expert witness for the upcoming evidentiary hearing. Additionally, they still had not received payment for the filing fee invoice sent on August 26, 2025.

The filing fee invoice from August was alive in January when the new cost arrived behind it. The old bill survived into the new bill. Approval first. Payment too. The hearing to set the hearing grew a specialist. The courtroom that was under construction became a Webex link. The virtual appearance became a request for thousands of dollars to explain what the old courtroom had done.

In the actual house, somebody had to remember where the sleep sacks were.

Somebody had to figure out whether there was enough milk. Somebody had to notice who was rubbing their eyes and who was about to come apart. Somebody had to know if the bananas were good, if the wipes were running low, if dinner needed thawing, if the bank balance could tolerate one more piece of civic seriousness dressed up as necessity. The law did not send an expert witness for any of that. It assumed expertise would be donated by the woman already carrying the household.

Institutions know how to name their own labor. They know what a paralegal costs, what an expert costs, what a filing fee costs, what an hour of testimony costs, what a continuance costs in paper. They do not know what it costs a household just to keep going beside them.

The court had not improved. Postconviction procedure had not developed grace. The Maine roadtrip had said so in salt and baby clutter. The November courtroom had said so by accident. January said it through links, invoices, and requests for approval. Again and again the state reached for sequence and found a family instead.

Not acquittal. Not vindication. Just the household still there when procedure had finished naming itself.

They went where they were told.

They asked what time.

They packed the bottles.

They made the drive.

And when the room turned out not to exist in the way it had been promised, life existed anyway.

By March the lawyer had become a judge.

It made you want to sit down.

The email arrived on March 4, 2026 with the usual professional manners. Geoffrey wanted to set a time for Daniel and Ms. McClintock to speak over the phone that week if he could accommodate it. She had recently been appointed to the Teller County Court bench and needed to speak with him about how that would affect her representation.

One week you have counsel. The next week she is on the bench.

No deputies came to the door. No jury was taught fresh contempt. The change was tidier than that. The woman who had been paid to read the damage would now sit above other people listening for theirs.

By March 10 the language had smoothed itself into reassurance. Elizabeth McClintock wrote to share important news regarding the future representation of the case. She had recently been appointed to the Teller County Court bench, succeeding the retiring Honorable Judge Kilgore. Ethical requirements required her to close McClintock Law Firm effective March 9, 2026. Ensuring that Daniel's legal matters continued to receive the attention and advocacy they deserve was her absolute top priority. To prevent any interruption in representation, as previously agreed upon, the case file had been seamlessly transferred to Theodore McClintock of McClintock Criminal Defense.

Seamlessly.

Institutions love that word when they would prefer to leave bodies out of it.

That week, babies needed feeding. Somebody had to remember what had run out. Somebody had to answer messages, count money, lift a child, monitor sleep, judge time, find thirty practical minutes inside a day pre-eaten by need. And now, on top of all of it, Daniel had to absorb the fact that the woman who had become his higher-court reader was now another judge in Colorado and he had been handed to a new man with the same last name and a different office.

The file moved easily enough. Daniel had to be moved with it.

Theodore entered the story with a fresh contact block. New address. New number. New email. Another office in another building promising continuity. At home it felt like one more transfer to explain, schedule around, afford, and absorb before anyone got to sleep.

The hearing moved.

One week earlier, on May 21, Camille had texted from inside a different kind of delay. Not the court's. The body's. The mind's. **I have so much mental fog and overwhelm, I've definitely been struggling and want to cry.** She said that when she felt so scattered, or like everything was really hard, it was best to let it percolate for a bit. She thought she should go for a walk and then head home. Daniel wrote back that the babies were great and that he was okay with her doing nothing. By midafternoon two voicemails had arrived from the house side of bureaucracy: apologies for the wait, a contractor wanting something signed before he would name a price, an insurer and a roofer speaking

the old administrative duet in which consent was requested before clarity. Then she was under the rocks and cliffs near Palmer Lake. **I am definitely trespassing and it's magical.** Then: **And I have spotted caves!**

This, too, was one of the marriage's emergency procedures. Let it percolate. Walk until the day stopped feeling administered and started feeling geologic. No checkbox for cliffs. No doctrine for caves.

Three days later she texted, **I don't feel good at all.** She did an anti-anxiety, anti-depression hypnosis. She had client work to return to. She asked Daniel to let her know when he wanted her to take over babies. By afternoon she reported that she had done one on letting go of negative thoughts and replacing them with positive thoughts. Then there were still babies to take over, clients to answer, and a body that didn't feel good at all.

By the time the calendar email arrived on May 28, 2026, the postconviction corridor smelled like another procedural stairwell. The message was automated. Please do not reply. An event: **McShan Rule 35C Hearing.** Monday, September 21, 2026, 9:00 AM to 10:00 AM. In person. Division 25. Room S305.

What mattered was down in the description field, where legal memory had been turned into clerical housekeeping.

On 04/06/2026, the matter came before the court regarding the Rule 35C petition. Defense counsel requested a continuance. The district attorney did not object. The court granted the request. The court cleared dates on the record with the parties and reset the hearing. New hearing: 06/08/2026 at 9:00 AM.

Then another layer lower: 03/06/2026 - **Substitution of Counsel from Leza.**

Useful for folders. Not much use to people.

April 6 became June 8. June disappeared into somebody else's docket. By May 28 the parties had contacted Division 25 for setting; the clerk had provided dates; September 21 at 9:00 AM had been selected for a half-day Rule 35C hearing. In the court's dialect, forward motion meant whether everybody could be there on the same morning three months from now.

Babies do not care that counsel has been substituted from Leza. Groceries do not care that the DA did not object. Nap windows do not honor continuances. Yet even after the stupid piece of paper arrives, somebody has to wipe the bottle, warm the food, answer the child, make the drive, put on candles, and improvise another survivable day.

Continuances are dull on paper, but their force here was domestic. Every reset entered an already crowded house. The state was no longer interrupting one man's case. It was in the kitchen with them.

The next morning Daniel texted, **I fucking hate the legal system.** Then the new date: **Mon, Sep 21, 2026, 9:00 AM to 10:00 AM (MDT).** Camille an-

swered, **Are you kidding?** He wished he was. He called it serious stupid. A few minutes later he tried the plainer register. **It is very frustrating.** Camille answered, **It is.** Then he gave the truer measurement: **It is slowly grinding me down. I don't like it.**

Are you kidding? stayed truer than the calendar. Not which division, which room, which morning, though those had their place. The older question was what kind of life could still be made here, under this, with these children, in this money, through this exhaustion, beside an institution that kept changing its terms and billing the family for adaptation.

By 2026 the answer arrived tired, half-scheduled, and with milk on it. It had learned that your lawyer may become a judge and your hearing may become a meeting about the hearing that had replaced the one you thought you were going to.

And the house kept going in the older arrangements. Setting the table. Packing the car. Carrying light. Feeding the children before answering the state.

September 21, 2026 sat there in the calendar like one more promise the law might or might not keep.

The house kept its own appointments. A bottle washed. A child answered. Food warmed. A message returned. A light saved for dawn.

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